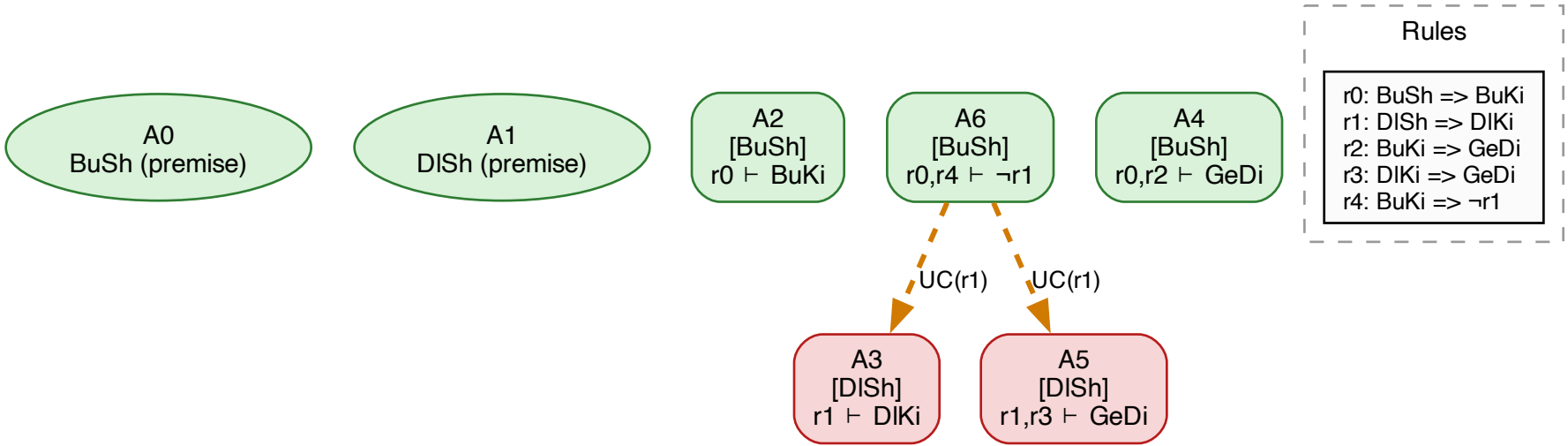People v. Dlugash (1997) — Preemption